



Drainage Rates (Disabled Persons) Act 1986

1986 CHAPTER 17

An Act to make provision for reducing drainage rates in respect of premises used by disabled persons and invalids. [26th June 1986]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Where a rating authority grant a rebate under section 1 or 2 of the Rating (Disabled Persons) Act 1978 in respect of the rates chargeable on a hereditament situated in an internal drainage district the authority shall, as soon as practicable, give the internal drainage board for that district written notice of the grant of the rebate stating—

Relief from drainage rates.
1978 c. 40.

- (a) its amount and the hereditament and period in respect of which it was granted; and
- (b) the amount of the rates that would have been chargeable in respect of that hereditament and period apart from the rebate.

(2) On receiving a notice under subsection (1) above the internal drainage board shall grant corresponding relief in respect of any drainage rates made by it so far as chargeable in respect of the hereditament and the period specified in the notice.

(3) In subsection (2) above “corresponding relief”, in relation to a rebate, means relief of an amount which bears to the amount

of the drainage rates chargeable as mentioned in that subsection the same proportion as the rebate bears to the amount of the rates that would have been chargeable in respect of the hereditament and the period in question apart from the rebate.

(4) The foregoing provisions apply also where part of a hereditament is in an internal drainage district; and where different parts are in different districts a notice shall be given under subsection (1) above to the internal drainage board for each of those districts.

(5) Relief under this section shall be granted by reducing the drainage rates chargeable as mentioned in subsection (2) above or by repaying or allowing the amount overpaid.

Short title,
commence-
ment and
extent.

2.—(1) This Act may be cited as the Drainage Rates (Disabled Persons) Act 1986.

(2) This Act shall come into force on 1st April 1987.

(3) This Act does not extend to Scotland or Northern Ireland.